



CONFIDENTIAL DRAFT · FOR LEGAL REVIEW

# ZEBRAISH

## OFFICIAL COLLABORATION AGREEMENT

OFFICIAL COLLABORATION PARTNER

[COLLABORATOR FULL LEGAL NAME]

POSITION

Zebraish Official Collaboration Partner

AGREEMENT TERM

3 months (Initial Term)

EFFECTIVE DATE

The date of the last signature on the Signature Page

FOUNDER / BRAND REPRESENTATIVE

Joshua Bankole

VERSION

v1.0 — [DRAFT DATE] — Confidential draft, not yet executed

This document is a drafting template. Every bracketed field must be completed, and this Agreement should be reviewed by a qualified lawyer in the applicable jurisdiction before signature.

## 1

## PARTIES & BACKGROUND

This Official Collaboration Agreement ("**Agreement**") is made and entered into as of the date of the last signature on the Signature Page below ("**Effective Date**"), by and between the following parties.

### Founder / Brand Representative

Joshua Bankole, an individual, currently operating the "Zebraish" brand and project ("**Founder**").

Email: j0shbankole19@gmail.com | Phone: 0816 532 0780 | Country: Nigeria

Address (if necessary): [FOUNDER ADDRESS]

### Brand

"Zebraish" is currently an early-stage, pre-registration brand and project ("**Zebraish**" or the "**Brand**"), represented for the purposes of this Agreement by the Founder named above. Zebraish is not, as of the Effective Date, incorporated or registered as a separate legal entity. References in this Agreement to "Zebraish" refer to the brand and project operated by the Founder, and all rights and obligations under this Agreement belong to the Founder personally, unless and until superseded under Section 12 (Future Zebraish Registration).

### Collaborator

[COLLABORATOR FULL LEGAL NAME] ("**Collaborator**").

Email: [COLLABORATOR EMAIL] | Phone: [COLLABORATOR PHONE]

Address / Country: [COLLABORATOR ADDRESS / COUNTRY]

The Founder and the Collaborator are each a "**Party**" and together the "**Parties**."

### Purpose

The Founder is appointing the Collaborator as a Zebraish Official Collaboration Partner to promote the Brand, create social media awareness, introduce potential customers, and represent the Brand, in each case in accordance with this Agreement.

## 2

## APPOINTMENT & ROLE

**Position:** Zebraish Official Collaboration Partner.

The Founder appoints the Collaborator, and the Collaborator accepts appointment, as a Zebraish Official Collaboration Partner. In this role, the Collaborator will:

- represent Zebraish positively and professionally;
- increase brand awareness for Zebraish;
- promote Zebraish on social media;
- create agreed promotional content;
- introduce potential customers to Zebraish;
- use the Collaborator's personal network and audience to generate interest in Zebraish;
- participate in agreed campaigns and promotional activities;
- provide feedback on customer and audience response where requested; and

- maintain professional conduct at all times when representing Zebraish.

**Exclusivity:** This Agreement is non-exclusive. The Collaborator may work with, promote, or represent other brands during the Term, provided such activity does not conflict with the Collaborator's obligations under this Agreement, including Section 7 (Brand Guidelines) and Section 8 (Confidentiality).

*If the Founder later wants exclusivity, or exclusivity limited to a specific product category or named competitors, this clause should be revised before signature.*

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## 3

### COLLABORATOR RESPONSIBILITIES

#### 3.1 Social Media

The Collaborator will maintain an agreed level of social media activity promoting Zebraish, as set out in Schedule A (Collaborator Deliverables), which may include, without limitation:

- a set number of Instagram posts per month;
- a set number of Instagram stories per month;
- a set number of TikTok / Reels videos per month;
- resharing official Zebraish campaigns when reasonably requested;
- tagging official Zebraish accounts where appropriate;
- using designated campaign hashtags where appropriate; and
- participating in product and campaign launches.

The exact figures for the above are set out in Schedule A and may be updated by written agreement between the Parties without amending the remainder of this Agreement, as set out in Section 14.2.

#### 3.2 Content

All content the Collaborator creates or shares in connection with Zebraish will:

- be original to the Collaborator or otherwise authorized for use;
- present Zebraish accurately;
- not contain false or misleading claims about Zebraish, its products, or its services;
- follow any agreed campaign guidelines provided by the Founder; and
- where required by the Founder in advance for a specific campaign, be submitted for approval before publication.

#### 3.3 Customer Referral

The Collaborator will be issued a unique referral code and/or referral link ("**Referral Code**"). Customers who use the Collaborator's Referral Code, or whose purchase is otherwise verified by the Founder as originating from the Collaborator's referral, will be attributed to the Collaborator for the purposes of Section 4 (Commission & Compensation).

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## 4

### COMMISSION & COMPENSATION

**4.1 Commission Rate.** The Collaborator will receive a commission of ten percent (10%) of Qualifying Sales directly attributable to the Collaborator's Referral Code.

**4.2 Qualifying Sale.** A "Qualifying Sale" is a completed customer transaction that:

- uses the Collaborator's unique Referral Code; or
- is otherwise verified by the Founder, acting reasonably, as having originated from the Collaborator's referral.

**4.3 Non-Qualifying Transactions.** The following do not count as Qualifying Sales and generate no commission:

- cancelled orders;
- refunded orders (on the refunded amount, in whole or pro-rata for partial refunds);
- fraudulent transactions;
- unpaid or uncollected orders; and
- transactions not attributable to the Collaborator's referral.

**4.4 Payment Schedule.** Commission is paid per Qualifying Sale, not on a periodic batch schedule. As soon as a customer completes payment for a Qualifying Sale attributed to the Collaborator, the Founder will verify the sale and pay the corresponding 10% commission to the Collaborator the same day.

**4.5 Payment Method.** Commission will be paid by bank transfer to the account details provided by the Collaborator in writing.

**4.6 No Fixed Salary.** For the avoidance of doubt, and as set out further in Section 6, no fixed salary is payable under this Agreement. Compensation is limited to the commission described in this Section 4, unless and until varied by a subsequent written agreement between the Parties.

**4.7 No Cap.** There is no arbitrary ceiling on the commission the Collaborator may earn under this Agreement.

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## 5

### PRODUCTS & CURRENT BRAND STATUS

The Parties acknowledge that, at the commencement of this Agreement, certain Zebraish products and branded apparel may not yet be commercially available. The Collaborator's initial responsibilities under this Agreement will therefore focus primarily on brand awareness, social media promotion, audience development, and the other agreed promotional activities described in Section 3. Product-related promotional duties, including the distribution of Zebraish products to the Collaborator, will commence or expand once such products become commercially available, at the Founder's discretion.

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## 6

### CONTENT & INTELLECTUAL PROPERTY

**6.1 Collaborator's Identity.** The Collaborator retains all ownership of the Collaborator's underlying personal identity, image, and likeness.

**6.2 License to the Founder.** The Collaborator grants the Founder, for the purposes of Zebraish, a non-exclusive, worldwide license to use the Collaborator's name, approved photographs, videos, and likeness, and any promotional content created for Zebraish under this Agreement, on Instagram, TikTok, the Zebraish website, and in Zebraish advertising, for legitimate promotional purposes related to Zebraish.

**6.3 Duration of License.** This license applies during the Term of this Agreement and for six (6) months after its expiry or termination, solely for reasonable archival, portfolio, and historical-campaign purposes. After that period, the Founder will, on the Collaborator's written request, cease active promotional use of that content in new campaigns (this does not require removal of organic social media posts made during the

Term).

**6.4 No Broader Rights.** Except as expressly granted in this Section 6, the Founder receives no other rights in the Collaborator's identity, image, or likeness.

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## 7

### BRAND GUIDELINES

The Collaborator agrees to:

- maintain professional conduct at all times when representing Zebraish;
- avoid knowingly making false or misleading claims about Zebraish;
- not represent or imply that the Collaborator is an owner, director, or officer of Zebraish, unless separately and expressly authorized in writing;
- not make unauthorized promises, offers, or commitments on behalf of Zebraish;
- not disclose Confidential Information except as permitted under Section 8; and
- follow reasonable campaign instructions provided by the Founder.

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## 8

### CONFIDENTIALITY

**8.1** "Confidential Information" means non-public information disclosed by the Founder to the Collaborator in connection with this Agreement, including without limitation: upcoming products; designs; business strategies; pricing strategies; customer information; marketing plans; private documents; unreleased campaigns; referral and commission data; and internal communications.

**8.2** The Collaborator will not disclose Confidential Information to any third party, or use it for any purpose other than performing this Agreement, without the Founder's prior written authorization.

**8.3** This Section 8 survives termination or expiry of this Agreement.

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## 9

### TERM

**9.1 Initial Term.** This Agreement begins on the Effective Date ("**Start Date**") and continues for an initial term of three (3) months from the Start Date ("**Initial Term**"), unless terminated earlier under Section 10 (Termination).

**9.2 Renewal.** This Agreement may be renewed or extended beyond the Initial Term only by mutual written agreement of both Parties. If no such written agreement is reached before the end of the Initial Term, this Agreement ends automatically three (3) months after the Start Date.

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## 10

### TERMINATION

**10.1 Immediate Termination.** Either Party may terminate this Agreement immediately, by written notice, if the other Party:

- commits serious misconduct;
- commits fraud;
- deliberately damages the other Party's reputation;

- misuses Confidential Information;
- engages in fraudulent referral activity; or
- materially breaches this Agreement and, where reasonably capable of remedy, fails to remedy that breach within 14 days of written notice.

**10.2 Termination for Convenience.** Either Party may terminate this Agreement for any other reason by giving the other Party fourteen (14) days' written notice.

**10.3 Effect of Termination.** On termination or expiry of this Agreement:

- the Collaborator will cease representing themselves as a Zebraish Official Collaboration Partner;
- Sections 6.3 (only as to already-published content), 8 (Confidentiality), 11 (Relationship Between the Parties), and 13 (Dispute Resolution) survive; and
- legitimate Qualifying Sales commission earned before the effective date of termination remains payable, subject to the verification process in Section 4.

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## 11

### RELATIONSHIP BETWEEN THE PARTIES

**11.1** The Collaborator is an independent brand representative and contractor. Nothing in this Agreement creates an employment relationship, partnership, joint venture, or agency relationship between the Parties, and the Collaborator is not a shareholder, director, partner, or employee of Zebraish or the Founder.

**11.2** The Collaborator has no authority to enter into contracts on behalf of Zebraish or the Founder, to incur expenses or liabilities on behalf of Zebraish or the Founder, or to otherwise legally bind Zebraish or the Founder, without the Founder's prior written authorization.

**11.3** The Collaborator will not represent themselves as an owner of Zebraish unless separately and expressly authorized in writing.

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## 12

### FUTURE ZEBRAISH REGISTRATION

The Parties acknowledge that Zebraish is currently operating as a developing, pre-registration brand and project, and that this Agreement is entered into by the Founder in the Founder's personal capacity for that reason. The Founder may, at the Founder's discretion, subsequently establish or register a legal entity for Zebraish. Following any such registration, the Parties may, by mutual written agreement, execute an updated or replacement agreement reflecting the newly registered entity as a party in place of the Founder, on substantially similar terms. Until any such replacement agreement is signed, this Agreement remains in full force between the Founder personally and the Collaborator.

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## 13

### DISPUTE RESOLUTION

**13.1 Good-Faith Discussion.** If a dispute arises out of or relating to this Agreement, the Parties will first attempt in good faith to resolve it through direct discussion.

**13.2 Mediation.** If the dispute is not resolved within a reasonable time through direct discussion, the Parties will attempt to resolve it through mediation, or another mutually agreed alternative dispute resolution process, before commencing formal legal proceedings.

**13.3 Governing Law.** This Agreement is governed by the laws of the Federal Republic of Nigeria.

■ THIS SECTION, INCLUDING GOVERNING LAW AND JURISDICTION, IS A PLACEHOLDER FOR REVIEW BY A QUALIFIED NIGERIAN LAWYER BEFORE THIS AGREEMENT IS SIGNED. IT IS NOT A SUBSTITUTE FOR LEGAL ADVICE.

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## 14

### GENERAL PROVISIONS

**14.1 Entire Agreement.** This Agreement, including Schedule A, is the entire agreement between the Parties regarding its subject matter, and supersedes all prior discussions and understandings, written or oral.

**14.2 Amendments.** This Agreement may only be amended by written agreement signed (including by electronic signature) by both Parties, except that Schedule A may be updated by written agreement between the Parties (including by email) without amending the remainder of this Agreement.

**14.3 Severability.** If any provision of this Agreement is found unenforceable, the remaining provisions remain in full force and effect.

**14.4 Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except that the Founder may assign this Agreement to a Zebraish legal entity established under Section 12.

**14.5 Notices.** Notices under this Agreement must be given in writing to the email addresses set out in Section 1, or another address either Party notifies in writing.

**14.6 Waiver.** No failure or delay by either Party in exercising any right under this Agreement operates as a waiver of that right.

**14.7 Electronic Signatures.** This Agreement may be executed electronically, including through an electronic signature platform, and an electronically signed copy is treated as an original.

**14.8 Counterparts.** This Agreement may be executed in counterparts, each of which is treated as an original, and together forming one agreement.

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## SIGNATURE PAGE

### FOUNDER / BRAND REPRESENTATIVE

Full Name (print): **Joshua Bankole**

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Email: **j0shbankole19@gmail.com**

### OFFICIAL COLLABORATION PARTNER

Full Name (print): \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Email: \_\_\_\_\_

### OPTIONAL WITNESS

Full Name (print): \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_



**SCHEDULE A****COLLABORATOR DELIVERABLES**

This Schedule A sets out the specific operational figures for the Collaborator's deliverables under Section 3. It may be updated by written agreement between the Parties under Section 14.2 without requiring a full amendment of the Agreement.

| Deliverable            | Requirement                                           |
|------------------------|-------------------------------------------------------|
| Instagram Posts        | [X] per month                                         |
| Instagram Stories      | [X] per month                                         |
| TikTok / Reels         | [X] per month                                         |
| Campaign Participation | As reasonably requested                               |
| Referral Code / Link   | [REFERRAL CODE / LINK]                                |
| Commission             | 10% of Qualifying Sales                               |
| Agreement Term         | 3 months from the Effective Date (see Signature Page) |
| Review Point           | End of Initial Term                                   |